

TO THE REPUBLICAN STATE ENTERPRISE
ON THE RIGHT OF ECONOMIC MANAGEMENT
“NATIONAL INSTITUTE OF INTELLECTUAL PROPERTY”
OF THE COMMITTEE ON INTELLECTUAL PROPERTY RIGHTS
OF THE MINISTRY OF JUSTICE OF THE REPUBLIC OF KAZAKHSTAN

To the Head of Department D. Alimzhanov

From: Citizen of the Republic of Kazakhstan Banchenko Denis Yurievich

Re applications: No. 2025/0592.1, 2025/0914.1, 2025/1095.1, 2025/1096.1, 2025/1097.1, 2026/0347.1, as well as any other applications for which analogous notices and queries regarding participation of foreign applicants were issued.

Dear Colleagues,

In response to the notices and queries received regarding the requirement to appoint a patent attorney of the Republic of Kazakhstan in connection with the participation of foreign natural persons in the applications, we wish to clarify the following:

We consider it necessary to draw attention to the fact that invoking the foreign citizenship of applicants as a ground for refusing to register rights or to perform other actions provided for by the Patent Law of the Republic of Kazakhstan does not comply with the requirements of the current legislation of the Republic of Kazakhstan.

Pursuant to Article 38 of the Patent Law of the Republic of Kazakhstan, foreign natural and legal persons enjoy the rights provided for by this Law on equal terms with natural and legal persons of the Republic of Kazakhstan.

The said provision does not contain any restrictions relating to the impossibility of acquiring, registering, transferring, or exercising patent rights solely on the grounds of the applicant's foreign citizenship.

All persons participating in the submitted materials have been duly identified, have been assigned individual identification numbers (IIN), and their details are contained in the state information systems of the Republic of Kazakhstan, enabling unambiguous identification of each right holder and applicant.

In view of the foregoing, we request that you indicate the specific provision of the law of the Republic of Kazakhstan or an international treaty to which the Republic of Kazakhstan is a party that directly prohibits the registration of the relevant rights in the case under consideration. In the absence of such a provision, we request that registration be carried out in accordance with the procedure established by law.

We also request clarification on the following matters:

Question 1. Possibility of substituting applicants with a legal entity

At present, applicant Banchenko Denis Yurievich is the director of TOO “Perspektivnye NIR” [Promising Scientific Research and Development] (BIN 240140033296).

We request clarification on the following:

- whether the transfer of applicants' rights under the above-mentioned applications to TOO “Perspektivnye NIR” (BIN 240140033296) is permissible;
- whether it is possible to make the corresponding amendments by means of a petition;
- what documents are required to be submitted for such substitution;

- whether the consent of all original applicants is required;
- whether the filing dates and priority of the applications are preserved upon such transfer.

Question 2. IIN holders and the patent-attorney requirement

We additionally request clarification as to whether the requirement to appoint a patent attorney of the Republic of Kazakhstan applies in the event that the foreign applicants hold individual identification numbers (IIN) of the Republic of Kazakhstan, as well as other registration data enabling them to perform legally significant actions on the territory of the Republic of Kazakhstan. We request information as to whether these circumstances are taken into account when determining the procedure for conducting proceedings on the application.

Question 3. Possibility of removing foreign applicants from the composition of applicants

In the event that the transfer of rights to the applications in favour of the LLP is not possible or requires a separate procedure, we request clarification on the following:

- whether it is possible to exclude foreign applicants from the composition of applicants;
- what procedure for making such amendments is provided for by the legislation of the Republic of Kazakhstan;
- what documents are required to be submitted;
- whether such amendment affects the priority date and the further examination of the applications.

We request that this letter be considered an official request for clarification of the procedure for further actions with respect to the applications indicated.

Respectfully,

Banchenko Denis Yurievich